

STATE OF OKLAHOMA

1st Session of the 60th Legislature (2025)

HOUSE BILL 1606

By: Gise

AS INTRODUCED

An Act relating to professions and occupations; establishing the Oklahoma Massage Therapy Board; amending 59 O.S. 2021, Section 4200.2, which relates to definitions; amending 59 O.S. 2021, Section 4200.3, which relates to requirements to practice massage therapy; amending 59 O.S. 2021, Section 4200.4, which relates to board authority; amending 59 O.S. 2021, Section 4200.5, which relates to license requirements; amending 59 O.S. 2021, Section 4200.6, which relates to assigning and transferring licenses; amending 59 O.S. 2021, Section 4200.8, which relates to license examination; amending 59 O.S. 2021, Section 4200.9, which relates to out of state license holders; amending 59 O.S. 2021, Section 4200.11, which relates to disciplinary actions and proceedings; amending 59 O.S. 2021, Section 4200.12, which relates to immunity from liability; amending 59 O.S. 2021, Section 4200.13, which relates to violations; modifying terms; providing for codification; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 4200.1a of Title 59, unless there is created a duplication in numbering, reads as follows:

The Oklahoma Massage Therapy Board is hereby established to carry out the duties and responsibilities of this act.

SECTION 2. AMENDATORY 59 O.S. 2021, Section 4200.2, is amended to read as follows:

Section 4200.2. As used in the Massage Therapy Practice Act:

1. "Board" means the ~~State Board of Cosmetology and Barbering~~
Oklahoma Massage Therapy Board;

2. "Direct access" means the ability that the public has to seek out treatment by a massage therapist without the direct referral from a medical or health care professional;

3. "Massage therapist" means an individual who practices massage or massage therapy and is licensed under the Massage Therapy Practice Act. A massage therapist uses visual, kinesthetic, and palpatory skills to assess the body and may evaluate a condition to the extent of determining whether massage is indicated or contraindicated;

4. "Massage therapy" means the skillful treatment of the soft tissues of the human body. Massage is designed to promote general relaxation, improve movement, relieve somatic and muscular pain or dysfunction, stress and muscle tension, provide for general health enhancement, personal growth, education and the organization, balance and integration of the human body and includes, but is not limited to:

- a. the use of touch, pressure, friction, stroking, gliding, percussion, kneading, movement, positioning, holding, range of motion and nonspecific stretching

1 within the normal anatomical range of movement, and
2 vibration by manual or mechanical means with or
3 without the use of massage devices that mimic or
4 enhance manual measures, and

5 b. the external application of ice, heat and cold packs
6 for thermal therapy, water, lubricants, abrasives and
7 external application of herbal or topical preparations
8 not classified as prescription drugs; and

9 5. "Massage therapy school" means a facility providing
10 instruction in massage therapy.

11 SECTION 3. AMENDATORY 59 O.S. 2021, Section 4200.3, is
12 amended to read as follows:

13 Section 4200.3. A. Unless a person is a licensed massage
14 therapist, a person shall not:

- 15 1. Use the title of massage therapist;
- 16 2. Represent himself or herself to be a massage therapist;
- 17 3. Use any other title, words, abbreviations, letters, figures,
18 signs or devices that indicate the person is a massage therapist; or
- 19 4. Utilize the terms "massage", "massage therapy" or "massage
20 therapist" when advertising or printing promotional material.

21 B. A person shall not maintain, manage or operate a massage
22 therapy school offering education, instruction or training in
23 massage therapy unless the school is a licensed massage therapy
24 school pursuant to Section 7 of this act.

1 C. Individuals practicing massage therapy under the Massage
2 Therapy Practice Act shall not perform any of the following:

- 3 1. Diagnosis of illness or disease;
- 4 2. High-velocity, low-amplitude thrust;
- 5 3. Electrical stimulation;
- 6 4. Application of ultrasound;
- 7 5. Use of any technique that interrupts or breaks the skin; or
- 8 6. Prescribing of medicines.

9 D. Nothing in the Massage Therapy Practice Act shall be
10 construed to prevent:

11 1. Qualified members of other recognized professions who are
12 licensed or regulated under Oklahoma law from rendering services
13 within the scope of the license of the person, provided the person
14 does not represent himself or herself as a massage therapist. A
15 physician or other licensed health care provider providing health
16 care services within the scope of practice of the physician or
17 provider shall not be required to be licensed by or registered with
18 the ~~State Board of Cosmetology and Barbering~~ Oklahoma Massage
19 Therapy Board;

20 2. Students from rendering massage therapy services within the
21 course of study when enrolled at a licensed massage therapy school;

22 3. Visiting massage therapy instructors from another state or
23 territory of the United States, the District of Columbia or any
24 foreign nation from teaching massage therapy, provided the

1 instructor is duly licensed or registered, if required, and is
2 qualified in the instructor's place of residence for the practice of
3 massage therapy;

4 4. Any nonresident person holding a current license,
5 registration or certification in massage therapy from another state
6 or recognized national certification system determined as acceptable
7 by the Board when temporarily present in this state from providing
8 massage therapy services as a part of an emergency response team
9 working in conjunction with disaster relief officials or at special
10 events such as conventions, sporting events, educational field
11 trips, conferences, traveling shows or exhibitions;

12 5. Physicians or other health care professionals from
13 appropriately referring to duly licensed massage therapists or limit
14 in any way the right of direct access of the public to licensed
15 massage therapists; or

16 6. The practice of any person in this state who uses touch,
17 words and directed movement to deepen awareness of existing patterns
18 of movement in the body as well as to suggest new possibilities of
19 movement while engaged within the scope of practice of a profession
20 with established standards and ethics, provided that the services
21 are not designated or implied to be massage or massage therapy.
22 Practices shall include but are not limited to the Feldenkrais
23 Method of somatic education, Rolf Movement Integration by the Rolf
24 Institute, the Trager Approach of movement education, and Body-Mind

1 Centering. Practitioners shall be recognized by or meet the
2 established standards of either a professional organization or
3 credentialing agency that represents or certifies the respective
4 practice based on a minimal level of training, demonstration of
5 competency, and adherence to ethical standards.

6 E. A physician or other licensed health care provider providing
7 health care services within their scope of practice shall not be
8 required to be licensed or registered with the ~~State Board of~~
9 ~~Cosmetology~~ Oklahoma Massage Therapy Board.

10 SECTION 4. AMENDATORY 59 O.S. 2021, Section 4200.4, is
11 amended to read as follows:

12 59-4200.4 A. ~~The State Board of Cosmetology and Barbering~~
13 Oklahoma Massage Therapy Board is hereby authorized to adopt and
14 promulgate rules pursuant to the Administrative Procedures Act that
15 are necessary for the implementation and enforcement of the Massage
16 Therapy Practice Act, including, but not limited to, qualifications
17 for licensure, renewals, reinstatements, and continuing education
18 requirements.

19 B. ~~The State Board of Cosmetology and Barbering~~ Oklahoma
20 Massage Therapy Board is hereby empowered to perform investigations,
21 to require the production of records and other documents relating to
22 practices regulated by the Massage Therapy Practice Act, and to seek
23 injunctive relief.

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1 C. There is hereby created an Advisory Board on Massage
2 Therapy. The Advisory Board on Massage Therapy shall assist the
3 Board in carrying out the provisions of this section regarding the
4 qualifications, examination, registration, regulation, and standards
5 of professional conduct of massage therapists. The Advisory Board
6 on Massage Therapy shall consist of five (5) members to be appointed
7 by the Governor for four-year terms as follows:

8 1. Three members who shall be licensed massage therapists and
9 have practiced in Oklahoma for not less than three (3) years prior
10 to their appointment;

11 2. One member who shall be an administrator or faculty member
12 of a nationally accredited school of massage therapy; and

13 3. One who shall be a citizen member.

14 D. The fee for any license issued between the effective date of
15 this act and May 1, 2017, shall be Twenty-five Dollars (\$25.00).
16 The fee or renewal fee for any massage therapy license issued after
17 May 1, 2017, shall be Fifty Dollars (\$50.00) per year. A duplicate
18 license fee shall be Ten Dollars (\$10.00).

19 SECTION 5. AMENDATORY 59 O.S. 2021, Section 4200.5, is
20 amended to read as follows:

21 Section 4200.5 A. Between the effective date of this act and
22 May 1, 2017, the ~~State Board of Cosmetology and Barbering~~ Oklahoma
23 Massage Therapy Board shall issue a license to practice massage
24 therapy to any person who files a completed application, accompanied

1 by the required fees, and who submits satisfactory evidence that the
2 applicant:

3 1. Is at least eighteen (18) years of age;

4 2. Has one or more of the following:

5 a. documentation that the applicant has completed and
6 passed a nationally recognized competency examination
7 in the practice of massage therapy,

8 b. an affidavit of at least five (5) years of work
9 experience in the state, or

10 c. a certificate and transcript of completion from a
11 massage school with at least five hundred (500) hours
12 of education;

13 3. Provides proof of documentation that the applicant currently
14 maintains liability insurance for practice as a massage therapist;
15 and

16 4. Provides full disclosure to the Board of any criminal
17 proceeding taken against the applicant including but not limited to
18 pleading guilty or nolo contendere to, or receiving a conviction
19 for, a felony crime that substantially relates to the practice of
20 massage therapy and poses a reasonable threat to public safety.

21 B. To assist in determining the entry-level competence of an
22 applicant who makes application for a license after May 1, 2017, the
23 Board may adopt rules establishing additional standards or criteria

1 for examination acceptance and may adopt only those examinations
2 that meet the standards outlined in Section 4200.8 of this title.

3 C. 1. After May 1, 2017, except as otherwise provided in the
4 Massage Therapy Practice Act, every person desiring to practice
5 massage therapy in this state shall be required to first obtain a
6 license from the Board.

7 2. After May 1, 2017, the Board may issue a license to an
8 applicant who:

- 9 a. is at least eighteen (18) years of age,
- 10 b. provides documentation that the applicant has
11 completed the equivalent of five hundred (500) hours
12 of formal education in massage therapy from a state-
13 licensed school,
- 14 c. provides documentation that the applicant has passed a
15 nationally recognized competency examination approved
16 by the Board,
- 17 d. provides proof that the applicant currently maintains
18 liability insurance for practice as a massage
19 therapist, and
- 20 e. provides full disclosure to the Board of any criminal
21 proceeding taken against the applicant including
22 pleading guilty or nolo contendere to, or receiving a
23 conviction for, a felony crime that substantially
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1 relates to the practice of massage therapy and poses a
2 reasonable threat to public safety.

3 D. As used in this section:

4 1. "Substantially relates" means the nature of criminal conduct
5 for which the person was convicted has a direct bearing on the
6 fitness or ability to perform one or more of the duties or
7 responsibilities necessarily related to the occupation; and

8 2. "Poses a reasonable threat" means the nature of criminal
9 conduct for which the person was convicted involved an act or threat
10 of harm against another and has a bearing on the fitness or ability
11 to serve the public or work with others in the occupation.

12 SECTION 6. AMENDATORY 59 O.S. 2021, Section 4200.6, is
13 amended to read as follows:

14 Section 4200.6. A. A massage therapy license issued by the
15 ~~State Board of Cosmetology and Barbering~~ Oklahoma Massage Therapy
16 Board shall at all times be posted in a conspicuous place in the
17 principal place of business of the holder.

18 B. A license issued pursuant to the Massage Therapy Practice
19 Act is not assignable or transferable.

20 SECTION 7. AMENDATORY 59 O.S. 2021, Section 4200.8, is
21 amended to read as follows:

22 Section 4200.8. The required examination approved by the ~~State~~
23 ~~Board of Cosmetology and Barbering~~ for licensure under the Massage
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1 Therapy Practice Act shall be a standardized national massage
2 therapy examination that meets the following criteria:

- 3 1. Is statistically validated through a job analysis under
4 current standards for educational and professional testing;
- 5 2. Complies with pertinent state and federal equal employment
6 opportunity guidelines;
- 7 3. Is available to all potential licensing candidates; and
- 8 4. Is delivered through a professional testing company with
9 high-security test centers located nationwide.

10 SECTION 8. AMENDATORY 59 O.S. 2021, Section 4200.9, is
11 amended to read as follows:

12 Section 4200.9. A. ~~The State Board of Cosmetology and~~
13 ~~Barbering~~ Oklahoma Massage Therapy Board may license an applicant,
14 provided that the applicant possesses a valid license or
15 registration to practice massage therapy issued by the appropriate
16 examining board under the laws of any other state or territory of
17 the United States, the District of Columbia or any foreign nation
18 and has met educational and examination requirements equal to or
19 exceeding those established pursuant to the Massage Therapy Practice
20 Act.

21 B. 1. Massage therapy licenses shall expire biennially.
22 Expiration dates shall be established by the Board through adoption
23 of a rule.
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1 2. A license shall be renewed by submitting a renewal
2 application on a form provided by the Board.

3 3. A thirty-day grace period shall be allowed each license
4 holder after the end of the renewal period, during which time a
5 license may be renewed upon payment of the renewal fee and a late
6 fee as prescribed by the Board.

7 C. 1. If a massage therapy license is not renewed by the end
8 of the thirty-day grace period, the license shall be placed on
9 inactive status for a period not to exceed one (1) year. At the end
10 of one (1) year, if the license has not been reactivated, it shall
11 automatically expire.

12 2. If within a period of one (1) year from the date the license
13 was placed on inactive status the massage therapist wishes to resume
14 practice, the massage therapist shall notify the Board in writing
15 and, upon receipt of proof of completion of all continuing education
16 requirements and payment of an amount set by the Board in lieu of
17 all lapsed renewal fees, the license shall be restored in full.

18 D. The Board shall establish a schedule of reasonable and
19 necessary administrative fees.

20 E. The Board shall fix the amount of fees so that the total
21 fees collected shall be sufficient to meet the expenses of
22 administering the provisions of the Massage Therapy Practice Act
23 without unnecessary surpluses.

1 SECTION 9. AMENDATORY 59 O.S. 2021, Section 4200.11, is
2 amended to read as follows:

3 Section 4200.11. A. The ~~State Board of Cosmetology and~~
4 ~~Barbering~~ Oklahoma Massage Therapy Board may take disciplinary
5 action against a person licensed pursuant to the Massage Therapy
6 Practice Act as follows:

- 7 1. Deny or refuse to renew a license;
- 8 2. Suspend or revoke a license;
- 9 3. Issue an administrative reprimand; or
- 10 4. Impose probationary conditions when the licensee or
11 applicant has engaged in unprofessional conduct that has endangered
12 or is likely to endanger the health, welfare or safety of the
13 public.

14 B. The Board shall take disciplinary action upon a finding that
15 the licensee or person has committed an act of unprofessional
16 conduct or committed a violation of rule or law.

17 C. Disciplinary proceedings may be instituted by sworn
18 complaint of any person, including members of the Board, and shall
19 conform to the provisions of the Administrative Procedures Act.

20 D. The Board shall establish the guidelines for the disposition
21 of disciplinary cases. Guidelines may include, but shall not be
22 limited to, periods of probation, conditions of probation,
23 suspension, revocation or reissuance of a license.

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1 E. A license holder who has been found culpable and sanctioned
2 by the Board shall be responsible for the payment of all costs of
3 the disciplinary proceedings and any administrative fees imposed.

4 F. The surrender of a license shall not deprive the Board of
5 jurisdiction to proceed with disciplinary action.

6 SECTION 10. AMENDATORY 59 O.S. 2021, Section 4200.12, is
7 amended to read as follows:

8 Section 4200.12. A. No member of the ~~State Board of~~
9 ~~Cosmetology and Barbering~~ Oklahoma Massage Therapy Board shall bear
10 liability or be subject to civil damages or criminal prosecution for
11 any action undertaken or performed within the scope of duty imposed
12 pursuant to the Massage Therapy Practice Act.

13 B. No person or legal entity providing truthful and accurate
14 information to the Board, whether as a report, a complaint or
15 testimony, shall be subject to civil damages or criminal
16 prosecutions.

17 SECTION 11. AMENDATORY 59 O.S. 2021, Section 4200.13, is
18 amended to read as follows:

19 Section 4200.13. A. A person who does any of the following
20 shall be guilty of a misdemeanor upon conviction:

21 1. Violates a provision of the Massage Therapy Practice Act or
22 rules adopted pursuant to the Massage Therapy Practice Act;

23 2. Renders or attempts to render massage therapy services or
24 massage therapy instruction without the required current valid

1 license issued by the ~~State Board of Cosmetology and Barbering~~
2 Oklahoma Massage Therapy Board;

3 3. Advertises or uses a designation, diploma or certificate
4 implying that the person offers massage therapy instruction or is a
5 massage therapy school unless the person holds a current valid
6 license issued by the Oklahoma Board of Private Vocational Schools
7 or is a technology center school accredited by the Oklahoma State
8 Board of Career and Technology Education; or

9 4. Advertises or uses a designation, diploma, or certificate
10 implying that the person is a massage therapist unless the person
11 holds a current valid license issued by the ~~State Board of~~
12 ~~Cosmetology and Barbering~~ Oklahoma Massage Therapy Board.

13 B. 1. Therapists regulated by the Massage Therapy Practice Act
14 shall be designated as "massage therapists" and entitled to utilize
15 the term "massage" when advertising or printing promotional
16 material.

17 2. Any person who uses a professional title regulated by the
18 Massage Therapy Practice Act who is not authorized to use the
19 professional title shall be subject to disciplinary action by the
20 Board.

21 3. Any person who knowingly aids and abets one or more persons
22 not authorized to use a professional title regulated by the Massage
23 Therapy Practice Act or knowingly employs or contracts with a person
24 or persons not authorized to use a regulated professional title in

1 the course of the employment, shall also be subject to disciplinary
2 action by the Board. It shall be a violation of the Massage Therapy
3 Practice Act for any person to advertise massage therapy services in
4 any combination with any escort or dating service.

5 SECTION 12. This act shall become effective November 1, 2025.

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